

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4431

By: Hilbert

AS INTRODUCED

An Act relating to Advanced Practice Registered Nurse; amending Section 2, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 567.5b), which relates to Advanced Practice Registered Nurse malpractice insurance requirements; providing for compliance; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 2, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 567.5b), is amended to read as follows:

Section 567.5b. A. An Advanced Practice Registered Nurse, or the employer of the Advanced Practice Registered Nurse on his or her behalf, shall carry malpractice insurance or demonstrate proof of financial responsibility in a minimum amount of One Million Dollars (\$1,000,000.00) per occurrence and Three Million Dollars (\$3,000,000.00) in the aggregate per year. This requirement shall apply only to the Advanced Practice Registered Nurse and shall not

1 be construed as to require the Advanced Practice Registered Nurse to
2 provide malpractice insurance coverage to any supervising physician.

3 B. An Advanced Practice Registered Nurse who is employed by or
4 under contract with a federal agency that carries malpractice
5 insurance in any amount on behalf of the Advanced Practice
6 Registered Nurse shall be deemed in compliance with subsection A of
7 this section when practicing under such federal employment or
8 contract. However, to the extent the Advanced Practice Registered
9 Nurse practices outside of such federal employment or contract, the
10 Advanced Practice Registered Nurse, or his or her employer, shall
11 comply with subsection A of this section.

12 C. An Advanced Practice Registered Nurse who is employed by a
13 state agency or facility that is covered by or subject to The
14 Governmental Tort Claims Act, Section 151 et seq. of Title 51 of the
15 Oklahoma Statutes shall be deemed in compliance with subsection A of
16 this section when practicing under such state employment. However,
17 to the extent the Advanced Practice Registered Nurse practices
18 outside of such state employment, the Advance Practice Registered
19 Nurse shall comply with subsection A of this section.

20 SECTION 2. This act shall become effective November 1, 2026.
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